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THE GUARANTOR FOR THE PROTECTION OF PERSONAL DATA

IN THE meeting held today, attended by
Prof. Pasquale Stanzione, President, Prof.
Ginevra Cerrina Feroni, Vice President, Dr.
Agostino Ghiglia and Attorney Guido Scorza, members, and
Dr. Claudio Filippi, Deputy Secretary General;

HAVING REGARD to Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, concerning the protection of natural persons with regard to the processing of personal data, as well as the free movement of such data and repealing Directive 95/46/EC, "General Data Protection Regulation" (hereinafter "Regulation");

HAVING REGARD to Legislative Decree No. 196 of June 30, 2003, containing the Code regarding the protection of personal data (hereinafter, "Code");

HAVING REGARD to Regulation No. 1/2019 concerning internal procedures of external relevance, aimed at carrying out the tasks and exercising the powers delegated to the Guarantor for the protection of personal data, approved by resolution No. 98 of April 4, 2019, published in G.U. No. 106 of May 8, 2019 and on www.gpdp.it, doc. web n. 9107633 (hereinafter "Regulation No. 1/2019");

HAVING REGARD to the documentation on file;

HAVING REGARD to the observations made by the Secretary General pursuant to Article 15 of the Guarantor's Regulation No. 1/2000 on the organization and functioning of the office of the Guarantor for the protection of personal data (doc. web n. 1098801);

REPORTING Dr. Agostino Ghiglia;

PREAMBLE

1. The complaint.

With a complaint submitted pursuant to Article 77 of the Regulation, Mr. XX complained of a violation of the regulations concerning the protection of personal data by the Revenue Agency – Collection – Provincial Directorate of XX ("Agency" or "Ader"), regarding the notification of two acts of seizure against third parties dated XX (executive procedures No. XX and XX) respectively to two private individuals (Mr. XX and Mr. XX) with whom the complainant had entered into a residential lease agreement several years prior, which was subsequently terminated, in relation to a property that was later sold. The complaint was accompanied by a series of documents, including the lease agreement, valid from XX to XX, registered on XX with the Revenue Agency - Provincial Directorate of XX (XX), the termination that occurred on 1/8/2016, as well as the sale contract (registered on XX) by which the complainant subsequently sold the same property. The complainant then argued that at the time of the notification of the two acts of seizure, there was no longer any legal relationship with the seized third parties in question, with the consequence that the Agency would have unlawfully communicated to them data and information related to him.

2. The investigative activity.

In response to the request for information made by this Department (with a note dated May 4 of this year), the Agency, with a note dated May 18, 2023, stated, in particular, that:
"Article 18 of Decree Law No. 112/1999 provides that collection concessionaires are authorized to access, even electronically, all relevant data for these purposes, even if held by Public Offices, with the power to view and extract copies of documents concerning the assets of debtors registered in the role and co-obligors, as well as to obtain, on plain paper, the relevant certifications. Furthermore, concessionaires, for the same purposes, are also authorized to access information available at the

Ministry of Finance's information system and at the information systems of other creditor entities, subject to confidentiality and secrecy requirements that may be opposed based on legal or regulatory provisions" (p. 2);

"In the context of the investigative activities preceding the seizure (...), a consultation of the Tax Registry data was carried out by an Ader employee, authorized to process personal data with the ability to operate, through access to the A.R.CO. online portal on 12/09/2022" (p. 3);

"In the section 'Acts of the Register (...)' the act XX registered at the U.T. of XX on XX was noted, in which the taxpayer appears as Dante Causa (Landlord) in the 'LEASE OF PROPERTY FOR RESIDENTIAL USE' agreement." In this regard, the Agency also specified that "the data displayed in the section of interest (Acts of the Register) are limited to the mere listing of registered legal transactions (...) while the duration and/or expiration of the contract cannot be inferred from the same source" (p. 3);

"This information referred to the area 'Acts of the Register', based on the guidelines issued over time by the Revenue Agency and the Ministry of Finance (...) (Circular No. 98E of 20/11/200[1]; Circular 215 of 27/11/2000), has been identified among those that are of 'primary importance' for the protection of tax credit" (p. 4);

"The processing operations in question, which cannot be traced back to automated decision-making processes referred to in Article 22 of the GDPR, were carried out by the operator in a targeted manner for the taxpayer's tax code with the assistance of the tools and applications in use respectively at the Relevant Arrears Office (...) and at the Procedures Office for Third Parties (...)" (p. 4);

the Circular of the Equitalia Group No. 92 of 1/7/2015 provides that "in the case of lease payments the verification of the validity and current possession of the property by the claimant before executing two third-party seizures, resulting from the detailed consultation of the data from the Tax Registry, through access to the A.R.CO portal, leading to the communication of personal data of the claimant to third parties" (cf. p. 3). In this regard, based on what was reported by the Regional Directorate XX, the Agency stated that "an isolated error occurred, committed by the authorized operator who, through mere negligence, in the preparatory phases for the activation of the aforementioned seizures, did not complete the necessary checks, particularly for the verification of the validity and current possession of the property" (p. 3).

- "The specific treatment contested pertains to the management of seizures pursuant to Article 72-bis of the Presidential Decree of September 29, 1973, No. 602, containing the order to pay directly to the collection agent addressed to the third debtor, identified based on the information acquired from the tax registry or from the financial relations registry" (p. 2);

- "The main activities of the treatment in question relate to the retrieval of information derived from databases - in accordance with Article 18 of Law Decree No. 112/1999 and Article 3 of the Law Decree of October 22, 2016, No. 193 - carried out by operators with specific authorized profiles and in the execution of the consequent collection procedures or for the preparation and notification of third-party seizures" (p. 2);

- "Within these complex procedures, the internal circular No. 92 of July 1, 2015 is integrated, aimed at providing specific indications regarding the movable enforcement procedure against the debtor as well as the significance to be attributed to certain 'Areas of Information' arising from the inquiry of the Tax Registry" (p. 2);

- "The Regional Directorate XX, characterized by the presence of high operational volumes, has carried out 31,634 third-party seizure acts from January 1, 2023, to September 30, 2023" (p. 3);

- "The treatment is to be considered on a large scale and for the same, a specific risk assessment has indeed been carried out (...) for which the Entity, taking into account the data processed, the defined treatment methods, and the security measures, based on the analyses carried out, did not find significant residual risks for the rights and freedoms of the data subjects" (p. 3);

- "Despite the various security measures provided and implemented by AdeR, in the case subject to complaint, a violation of personal data occurred concerning a single interested party, attributable to mere human error. In fact, the violation occurred as a result of the failure to verify the validity and current status of the existing relationships before executing two third-party seizures, based on the

results derived from the detailed consultation of the data from the Tax Registry, through access to the A.R.CO portal, resulting in the communication of personal data of the claimant to third parties” (cf. p. 3).

Based on the acquired elements, the Office notified the Agency, with a note dated September 15, 2023, pursuant to Article 166, paragraph 5, of the Code, of the initiation of proceedings for the adoption of measures referred to in Article 58, paragraph 2, of the Regulation, contesting the Agency's violation of Articles 5, paragraph 1, letters a) and d), and 6, paragraph 1, letter e), of the Regulation, as well as Article 2-ter of the Code, since, having failed to verify the validity and current possession of the property by the claimant, it notified - also in deviation from the indications contained in the referenced Circular No. 92 of July 10, 2015 - the two acts of seizure against third parties to subjects who, no longer being tenants of the property (now sold) previously owned by the claimant, could not qualify as third-party debtors.

In this context, the Office invited the Agency to produce defensive writings or documents or to request to be heard by the Authority (Article 166, paragraphs 6 and 7, of the Code; as well as Article 18, paragraph 1, of Law No. 689 of November 24, 1981). The Agency, with a note dated October 11, 2023, transmitted its defensive memoranda, stating, in particular, that:

confirm the elements provided by the internal regulations of the Entity aimed at verifying the persistence of the lease relationship between the third party subject to seizure and the taxpayer resulting from the archive of the Tax Registry” (p. 4);

- “The internal circular no. 92 of 2015, as far as specifically relevant, regarding lease contracts from the active side, established that “in the case of rental fees resulting from a contract registered in the two years preceding the notification of the payment notice, the enforcement procedure on the registered real estate/movable property must always be initiated, after examining the lease contract itself and confirming the current possession by the debtor of the registered real estate/movable property leased. For contracts registered beyond two years, however, if the registered real estate/movable property is still owned by the debtor, before proceeding with enforcement, it is provided to send a request for an extrajudicial declaration to the third tenant pursuant to art. 75 bis of DPR 602/73” (p. 3);

- “the processing operations subject to the violation were carried out in a punctual and not massive manner by the authorized operator for the tax code of the interested debtor” (pp. 3 and 4);

- “the procedure for seizure against the debtor was activated (...) without the prior performance by the operator of the verification activities that are explicitly provided for by the internal regulations and the aforementioned procedures” (p. 4);

- “The personal data of the interested taxpayer, reported in the documents sent to two third parties subject to seizure, belong to the category of common data referred to in [art. 4 of the GDPR] and relate to: name and surname, date and place of birth, residence, tax code, and debt position” (p. 4);

- “the same acts [of seizure against third parties] were notified to the Third Parties on 08/02/2023 but were promptly revoked on 25/02/2023 following a negative declaration made by one of the third parties subject to seizure” (p. 4);

- “As previously communicated by the competent Regional Directorate XX, no other operational errors of the type under examination have been recorded” (p. 4);

- the violation is “attributable exclusively to the negligent non-application, by the authorized operator, of the verifications provided for by the internal circular no. 92 of 2015 of the Entity as far as it relates to the preliminary checks for the activation of seizures against third parties.” Verifications that the operator did not carry out “due to mere negligence.” The error should therefore be traced back “to one of those “human factors” that are not always fully measurable, predictable, and/or preventable, which, as such, place their occurrence in that percentage of “residual risk” that can never be completely eliminated, despite any “adequate” technical-organizational measures that the data controller may have implemented” (p. 5);

- “the processing in question was promptly interrupted by the Regional Directorate XX following the negative declaration made by the third party as a result of a request specifically provided for in the act of seizure against third parties” (p. 5);

- “The Data Protection Officer requested, on 12/05/2023, from the Central Directorate for Collection

Strategies and Services a specific intervention to raise awareness among staff on the correct application of internal regulations, particularly regarding aspects related to the protection of personal data and the possible negative consequences on the rights and freedoms of the interested parties"; the aforementioned Directorate "sent, through the Entity's territorial Networks, a note (...) aimed at drawing the attention of the regional Directorates to the need to prevent potential risks to the rights and freedoms of the interested citizens." Specifically, "the operators' attention was drawn to compliance with the mandatory verifications provided for by circular no. 92 of 2015 in the processing activities related to the analysis of taxpayers' possessions through consultation of the Tax Registry in the processing of seizures against third parties" (p. 6);

- the "general technical and organizational measures adopted by the Entity" are articulated in "a complex "Data Protection Management System" (also "SGPD"), present in a specific section of the Intranet," "a periodic and generalized training and awareness-raising activity for staff," "a detailed system of policies and procedures," "the periodic review of documentation and the adequacy of the technical and organizational measures implemented," "the implementation of projects (...) structured to support active and participatory management of integrated data governance and data protection processes" (p. 7);

- the Revenue Agency - Collection "applies the code of ethics for concessionaires and collection officials pursuant to art. 8, paragraph 3, of Legislative Decree 112/1999, which defines the obligations of correctness to which they must adhere in managing the procedures" and "is certified ISO 27001 and ISO 9001" (p. 9);

- "the Entity has deemed, unless otherwise advised by the Authority, that the occurrence of a "distraction," due to simple fatigue and/or other personal conditions of the authorized operator, in omitting the implementation of certain checks provided for by internal procedures, cannot constitute an indication of the lack within the Entity itself of adequate technical-organizational measures prescribed by art. 32 of the Regulation" (p. 9).

3. Outcome of the investigative activity.

3.1. Applicable regulations.

****Regulations on the Protection of Personal Data****

The regulations regarding the protection of personal data require the applicability of the principles listed in Article 5 of the Regulation to every processing activity, including those of "lawfulness and fairness," as well as "accuracy," according to which, in particular, personal data must be "accurate and, where necessary, kept up to date" and "all reasonable measures must be taken to erase or rectify inaccurate data without delay, in relation to the purposes for which they were processed" (Article 5, paragraph 1, letters a) and d), of the Regulation).

With particular reference to the case at hand, it is highlighted that the processing of personal data was carried out by the Agency for collection purposes, within the execution of a task of public interest, and finds its legal basis in the sector-specific regulations of national law (Article 6, paragraphs 1, letter e), and 3, of the Regulation, Article 2-ter of the Code, and specifically Article 72-bis of Presidential Decree No. 602/1973).

Furthermore, regarding the communication of personal data to third parties, given that Article 2-ter, paragraph 4, of the Code clarifies that "communication" means "the disclosure of personal data to one or more specified subjects other than the data subject, the representative of the data controller in the territory of the European Union, the processor or their representative in the territory of the European Union, and the persons authorized, pursuant to Article 2-quaterdecies, to process personal data under the direct authority of the controller or the processor, in any form, including by making them available, consulting, or through interconnection," the same article also provides that "The legal basis provided for in Article 6, paragraph 3, letter b), of the Regulation consists of a law or regulation or general administrative acts" and that "The dissemination and communication of personal data, processed for the execution of a task of public interest or related to the exercise of public powers, to subjects intending to process them for other purposes are only permitted if provided for under paragraph 1 or if necessary under paragraph 1-bis" (paragraphs 1 and 3).

In this context, in order to ensure a fair and transparent processing in respect of the data subject, taking into account the specific circumstances and context in which the personal data are processed, it is appropriate for the data controller to implement adequate technical and organizational measures (Article 24 of the Regulation).

****3.2. Assessments.****

From the investigation carried out based on the elements acquired and the facts emerged following the investigative activity, as well as from the subsequent assessments of the Office, it appears that the Agency, in violation of the principles of lawfulness, fairness, and accuracy (Article 5, paragraph 1, letters a) and d), and 6, paragraph 1, letter e), of the Regulation, as well as Article 2-ter of the Code, unlawfully communicated to Messrs. XX and XX the personal data relating to the complainant, as the aforementioned subjects were erroneously classified as third-party debtors of the complainant based on two inaccurate assumptions, namely the validity of the lease contract concluded on XX, and the continued ownership, by the complainant, of the previously leased property.

As evidenced by the documents and, in particular, by the statements made by the data controller, this erroneous belief arose because the necessary verifications regarding the validity of the lease contract and the current ownership of the property were not carried out, in order to correctly identify the attachable assets before the initiation of the enforcement procedure, in violation of Article 5, paragraph 1, letter d), of the Regulation.

Indeed, it appears that, despite the considerable time elapsed from the registration of the lease contract to the notification of the two acts of attachment in question (i.e., from XX to 2023) – the validity of the lease relationship, which had since ceased, between the complainant and Messrs. XX and XX was not verified in advance, nor was the current ownership of the property, now sold, by the complainant; a verification that would have avoided the communication to third parties complained of by the complainant.

Moreover, it should be added that, in order to verify the current information obtainable from the ARCO application, relating to the rental fees resulting from the previously registered contract, the aforementioned circular No. 92/2015 identifies measures to implement the principle of accuracy of the data to be used in the context of the attachments of the fees received by the debtor. These measures provide, with specific reference to the necessary obligations for the initiation of an enforcement procedure for contracts registered over two years, "the sending to the third tenant of a request for extrajudicial declaration pursuant to Article 75-bis of Presidential Decree 602/73" in the event that "the registered real estate property is still owned by the debtor, before proceeding with enforcement" (a sending that was not carried out in the case at hand); this, however, without recalling, also for this case, "the examination of the lease contract itself," which is instead expressly requested only "in the case of a contract registered within the two years preceding the notification of the payment notice," despite a shorter time frame having elapsed compared to the initiation of the procedure.

From this examination, it could indeed have been deduced that the duration of the lease contract was originally set until January 31, 2020, subject to the termination that had already occurred in August 2016.

In this regard, it is also noted that the data controller has not demonstrated having implemented further technical and organizational measures aimed at soliciting and verifying, before the initiation... of the executive action, the compliance by the employees with the aforementioned guidelines provided in the circular to ensure the accuracy of the data necessary for identifying the assets to be seized. Such guidelines, although partially inadequate, would have in any case avoided the undue communication of data complained of in the appeal. From the above observations, it follows that the inadequacy and insufficiency of the indications in the referenced circular and, more generally, of the measures adopted to ensure full compliance with the principle of accuracy in the processing of data carried out in the context of seizures, which, in this case, would have avoided the undue communication to third parties of data relating to the debtor's situation of the appellant, also with potential harm to his reputation, in violation of the principles of lawfulness, fairness, and accuracy as

per Articles 5, paragraph 1, letters a) and d), and 6, paragraph 1, letter e), of the Regulation, as well as Article 2-ter of the Code.

4. Conclusions.

In light of the evaluations mentioned above, taking into account the statements made by the data controller during the investigation – the truthfulness of which may be subject to accountability under Article 168 of the Code – it is noted that the elements provided by the data controller in the defense briefs, although deserving of consideration, do not allow for overcoming the observations notified by the Office with the initiation act of the procedure and are insufficient to allow for the closure of the present procedure pursuant to Article 14, paragraph 1, of the Garante Regulation No. 1/2019, as none of the cases provided for in Article 11 referenced therein apply. Therefore, the preliminary assessments of the Office are confirmed, and the unlawfulness of the processing of personal data carried out by the Revenue Agency - Collection is noted on the assumption that the processing of the appellant's personal data – and, in particular, the communication of the same to third parties – was carried out in a manner not compliant with the principles of lawfulness, fairness, and accuracy, in the absence of an appropriate legal basis, in violation of Articles 5, paragraph 1, letters a) and d), 6, paragraph 1, letter e) of the Regulation and Article 2-ter of the Code.

5. Corrective Measures (Article 58, paragraph 2, letter d) of the Regulation).

From the investigation conducted, it has emerged, in particular, the inadequacy of the measures adopted by the Agency in the context of executive procedures to ensure full compliance with the principle of accuracy in the processing of personal data relating, in particular, to lease contracts. Article 58, paragraph 2, letter d), of the Regulation provides that the Garante has the corrective power to “order the data controller [...] to bring the processing into compliance with the provisions of this regulation, if necessary, in a specific manner and within a specific timeframe.” In this context, due to the unlawfulness of the processing carried out, it is deemed necessary to order the Agency, pursuant to Article 58, paragraph 2, letter d), of the Regulation, where it has not already done so, to adopt further measures to ensure compliance with the principle of accuracy in contexts similar to that under examination, at least by providing that:

- with reference to the obligations necessary for the initiation of an executive procedure, the examination of the lease contract is expressly provided for also for lease contracts registered more than two years prior to the notification of the payment notice;
- procedural mechanisms aimed at proving the execution, by the employee, of the required checks on the validity of the lease contracts and the current possession of the property are introduced.

Pursuant to Articles 58, paragraph 1, letter a), of the Regulation and 157 of the Code, the Agency must also communicate to this Authority the initiatives undertaken to implement the above orders pursuant to the cited Article 58, paragraph 2, letter d) of the Regulation within thirty days from the notification of this provision.

6. Adoption of the injunction order for the application of the administrative pecuniary sanction and accessory sanctions (Articles 58, paragraph 2, letter i) and 83 of the Regulation; Article 166, paragraph 7, of the Code).

The Garante, pursuant to Articles 58, paragraph 2, letter i) and 83 of the Regulation as well as Article 166 of the Code, has the power to “impose an administrative pecuniary sanction pursuant to Article 83, in addition to the [other] corrective measures [provided for] in this paragraph, or in lieu of such measures, depending on the circumstances of each individual case” and, in this context, “the Board [of the Garante] adopts the injunction order, which also provides for the application of the accessory administrative sanction of its publication, in whole or in part, on the Garante's website pursuant to Article 166, paragraph 7, of the Code” (Article 16, paragraph 1, of the Garante Regulation No. 1/2019). Considering that the violation of the aforementioned provisions occurred as a result of a single conduct (same processing or related treatments), Article 83, paragraph 3, of the Regulation applies, according to which the total amount of the administrative pecuniary sanction does not exceed the amount specified for the most serious violation. Given that, in this case, all violations relating to Articles 5 and 6 of the Regulation, as well as 2-ter of the Code, are subject to the sanction provided for by Article 83,

paragraph 5, of the Regulation, as referenced also by Article 166,

****comma 2, of the Code, the total amount of the fine is to be quantified up to 20,000,000 euros. The aforementioned administrative pecuniary sanction imposed, depending on the circumstances of each individual case, must be determined in amount taking into due account the elements provided for in Article 83, paragraph 2, of the Regulation.****

****Taking into overall account the fact that:****

1. ****the violation, which concerned a single interested party, occurred in an organizational context characterized by the presence of high operational volumes, within which the Regional Directorate XX carried out 31,634 acts of seizure against third parties during the period from January 1, 2023, to September 30, 2023, and within the context in question, no other operational errors of the same kind were recorded (cf. note of October 11, 2023, pp. 3 and 4; Article 83, paragraph 2, letter a), of the Regulation);****

2. ****the conduct is of a negligent nature (Article 83, paragraph 2, letter b), of the Regulation);****

3. ****the treatment in question concerned personal data which, although not belonging to the special categories referred to in Article 9 of the Regulation or coinciding with those related to criminal convictions or offenses referred to in Article 10 of the Regulation, nonetheless pertains to the sphere of private life of the interested party and presents a particular sensitivity and delicacy, concerning the debtor situation of the interested party (Article 83, paragraph 2, letter g), of the Regulation);****

4. ****it is believed that, in this case, the level of severity of the violation committed by the data controller is medium (cf. European Data Protection Board, "Guidelines 4/2022 on the calculation of administrative fines pursuant to the GDPR" of May 24, 2023, point 60).****

****Having said that, it is considered that, for the purposes of quantifying the fine, the following mitigating circumstances should be taken into account:****

1. ****there are no previous relevant violations committed by the data controller or previous measures referred to in Article 58 of the Regulation (Article 83, paragraph 2, letter e), of the Regulation);****

2. ****the data controller has cooperated with the Authority during the investigation, also taking steps to raise awareness among all employees regarding the correct application of the rules on personal data processing and the related obligations, particularly drawing the operators' attention to compliance with the mandatory checks provided for by Circular No. 92 of 2015;****

3. ****this, however, as illustrated above, was not sufficient to ensure full compliance with the principle of accuracy in this context (cf. note of May 18, 2023, p. 6; Article 83, paragraph 2, letter f), of the Regulation).****

****In light of the aforementioned elements, assessed in their entirety, it is deemed appropriate to determine the amount of the pecuniary sanction at 40,000 euros (forty thousand) for the violation of Articles 5, paragraph 1, letters a) and d), and 6, paragraph 1, letter e), of the Regulation, as well as Article 2-ter of the Code, as an administrative pecuniary sanction deemed, pursuant to Article 83, paragraph 1, of the Regulation, effective, proportionate, and dissuasive.****

****In this context, it is also considered that, pursuant to Article 166, paragraph 7, of the Code and Article 16, paragraph 1, of the Regulation of the Guarantor No. 1/2019, the publication of this section containing the injunction order on the Guarantor's website should proceed. This is in consideration of the fact that the treatment concerned, in this case, inaccurate personal data, with the consequent undue communication to third parties of information characterized by particular sensitivity and delicacy, such as that relating to the debtor conditions of the complainant, in the absence of adequate measures capable of reducing risks to the rights and freedoms of the interested parties.****

****Finally, it is noted that the conditions referred to in Article 17 of Regulation No. 1/2019 concerning internal procedures with external relevance, aimed at carrying out the tasks and exercising the powers entrusted to the Guarantor, are met.****

****ALL OF THE ABOVE HAVING BEEN STATED, THE GUARANTOR****

****pursuant to Article 57, paragraph 1, letter f) and 83, declares the conduct of the Revenue Agency-Collection, located at Via Giuseppe Grezar, No. 14, 00142 Rome, Tax Code 13756881002,**

described in the terms of the motivation, consisting of the violation of Articles 5, paragraph 1, letters a) and d), and 6, paragraph 1, letter e), of the Regulation, as well as Article 2-ter of the Code, unlawful;**

****ORDERS****

****the Revenue Agency-Collection, represented by its legal representative pro tempore, located at Via Giuseppe Grezar, No. 14, 00142 Rome, Tax Code 13756881002, to pay the sum of 40,000 euros (forty thousand).****

****COMMANDS****

- ****the aforementioned Agency, in case of failure to resolve the dispute pursuant to Article 166, paragraph 8, of the Code, to pay the sum of 40,000.00 euros (forty thousand) according to the methods indicated in the annex, within 30 days from the notification of this provision, under penalty of the adoption of subsequent executive acts in accordance with Article 27 of Law No. 689/1981. It is noted that, pursuant to Article 166, paragraph 8, of the Code, the offender retains the right to resolve the dispute by paying - always according to the methods indicated in the annex - an amount equal to half of the imposed sanction within the deadline referred to in Article 10, paragraph 3, of Legislative Decree No. 150 of September 1, 2011, provided for the submission of the appeal as indicated below;****

- ****the aforementioned Agency, pursuant to Article 58, paragraph 2, letter d), of the Regulation, to adopt further measures to ensure compliance with the principle of****

accuracy in the context in question, also providing the Guarantor, within the same deadline, pursuant to Articles 58, paragraph 1, letter a), of the Regulation and 157 of the Code, with adequately documented feedback regarding the initiatives undertaken in order to implement the ordered measures.

ORDERS

- pursuant to Article 166, paragraph 7, of the Code and Article 16, paragraph 1, of the Guarantor's Regulation No. 1/2019, the publication of the injunction order on the Guarantor's website;

- pursuant to Article 154-bis, paragraph 3, of the Code and Article 37 of the Guarantor's Regulation No. 1/2019, the publication of this provision on the website of the Authority;

- pursuant to Article 17 of the Guarantor's Regulation No. 1/2019, the annotation of the violations and the measures adopted in accordance with Article 58, paragraph 2 of the Regulation, in the internal register of the Authority provided for by Article 57, paragraph 1, letter u), of the Regulation.

Pursuant to Articles 78 of the Regulation, 152 of the Code, and 10 of Legislative Decree No. 150/2011, an appeal against this provision may be filed before the ordinary judicial authority, under penalty of inadmissibility, within thirty days from the date of communication of the provision itself or within sixty days if the appellant resides abroad.

Rome, December 19, 2024

THE PRESIDENT

Stanzione

THE REPORTER

Ghiglia

THE DEPUTY SECRETARY GENERAL

Filippi